

K.R. Weaving Mills Pvt. Ltd. v. State of U.P.

Allahabad High Court · Division Bench · 4 July 2022 · K.R. Weaving Mills Pvt. Ltd. v. State of U.P., Writ-C No. 13572 of 2022 (All.) · Writ-C No. 13572 of 2022 · **Writ disposed; 6.5 objection directed; coercive action stayed eight weeks**

HEADNOTE

Writ against a bill-cum-disconnection notice disposed of without merits. Consumer given four weeks to object under para 6.5 of the U.P. Electricity Supply Code, 2005; the issuing officer to decide within four weeks thereafter after hearing. No coercive action on the impugned demand for eight weeks or until the objection is decided, whichever is earlier.

FACTUAL SUMMARY

K.R. Weaving Mills Pvt. Ltd. challenged a bill-cum-disconnection notice dated 3 May 2022 issued by the distribution licensee. It sought certiorari to quash the notice, a declaration that bills under Rate Schedule HV-2 were illegal, recasting of the account with refund of any excess after adjustment of lawful dues, and a restraint on coercive enforcement. Counsel for the Power Distribution Corporation stated on instructions that the petitioner could object to the demand and that the objection would be decided within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-cum-disconnection notice — clause 6.5 objection

HOLDING

The writ against the bill-cum-disconnection notice dated 3.5.2022 is disposed of without expressing any opinion on merits. The petitioner may submit an objection under para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 within four weeks; if so submitted, it shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court declined merits examination of the bill-cum-disconnection notice and HV-2 billing challenge and relegated the consumer to a time-bound para 6.5 objection before the issuing officer. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The disputed demand under the 3.5.2022 bill-cum-disconnection notice was left to be decided on a para 6.5 objection in accordance with law after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE BILL-CUM-DISCONNECTION NOTICE DATED 3.5.2022 AND OF BILLS ISSUED UNDER RATE SCHEDULE HV-2

Court expressly declined to express any opinion on merits. ¶ 1